

PART I: WHAT IS ETHICS? (Lesson 1)

Key Definitions

Term	Definition
Ethics	A code of behavior that is defined by the group to which an individual belongs. Ethical behavior conforms to generally accepted norms, which may change over time to meet the evolving needs of society or a group of people who share similar laws, traditions, and values that provide structure to enable them to live in an organized manner. Ethics help members of a group understand their roles and responsibilities.
Morals	The personal principles upon which an individual bases his or her decisions about what is right and what is wrong. They are core beliefs formed and adhered to by an individual.

Virtue and Vices

	Definition	Examples
Virtue	A habit that inclines people to do what is acceptable	Fairness, generosity, loyalty
Vice	A habit of unacceptable behavior	Vanity, greed, envy, anger

Factors That Impact Individual Views of Morality

Individual views of what behavior is moral may be impacted by a person's:

- Age
- Cultural group
- Ethnic background
- Religion
- Life experiences
- Education
- Gender (along with many other factors)

Example: Software Piracy

Attitudes toward **software piracy**—a form of copyright infringement that involves making copies of software or enabling others to access software to which they are not entitled—

range from strong opposition to acceptance of the practice as a standard approach to conducting business.

Professional Ethics Examples

Profession	Ethical Standard
Law Profession	Defense attorneys must defend an accused client to the best of their ability, even if they know that the client is guilty of the most heinous and morally objectionable crime.
Medical Profession	Doctors are not ethically allowed to euthanize a patient, even at the patient's request. However, the doctor may personally believe (based on personal morals) that the patient has a right to die.

The Difference Between Morals, Ethics, and Laws

Concept	Definition
Law	A system of rules that tells us what we can and cannot do. Laws are enforced by institutions (police, courts, law-making bodies). Violation can result in censure, fines, and/or imprisonment. Laws are not static; new laws are constantly being introduced and existing laws repealed or modified.
Legal acts	Acts that conform to the law.
Moral acts	Acts that conform to what an individual believes to be the right thing to do.

Important Distinctions:

- Laws can proclaim an act as **legal**, although many people may consider the act **immoral** (e.g., abortion).
- Laws may also proclaim an act as **illegal**, although many people may consider the act **moral** (e.g., using marijuana to relieve stress and nausea for chemotherapy patients).

Laws raise important and complex issues concerning **equality, fairness, and justice**, but do **not** provide a complete guide to ethical behavior. Just because an activity is defined as legal does **not** mean that it is ethical.

The Four Quadrants of Legal vs. Ethical Behavior

	Legal	Illegal
Ethical	Ethical and Legal	Ethical and Illegal
Unethical	Unethical and Legal	Unethical and Illegal

PART II: ETHICS IN THE BUSINESS WORLD (Lesson 2)

Examples of Lapses in Business Ethics by IT Organizations

Company	Ethical Lapse
Volkswagen	Admitted that 11 million of its vehicles were equipped with software used to cheat on emissions tests.
Toshiba	Disclosed that it overstated its earnings over a seven-year period by more than \$1.2 billion.
Amazon	Has the second highest employee turnover rate of companies in the Fortune 500; criticized for creating a high-pressure work environment with almost impossible expectations.

The Bathsheba Syndrome

The **Bathsheba syndrome** refers to the moral corruption of people in power, which is often facilitated by a tendency for people to look the other way when their leaders act inappropriately. The name comes from the biblical story of King David, who became corrupted by his power and success.

Examples Involving Lower-Level Employees

Person	Incident
Edward Snowden	Working as a Dell contractor at the NSA, copied thousands of classified documents revealing details about NSA operations. Felt he acted as a patriot exposing government overreach. Some consider him a whistle-blower and hero, others a traitor.

Person	Incident
Mark Lillie (Takata engineer)	Warned the company about the deadly consequences of using ammonium nitrate in airbags. The chemical enabled higher profits but caused devices to rupture. He left the firm in disagreement. At least 10 deaths and over 100 injuries were attributed to the flawed devices in the U.S., with over 100 million cars recalled worldwide.

Workplace Misconduct Statistics

According to the **2013 National Business Ethics Survey**, **managers**—those expected to act as role models and enforce discipline—are responsible for **60 percent of workplace misconduct**.

Corporate Social Responsibility (CSR)

Term	Definition
Corporate Social Responsibility (CSR)	The concept that an organization should act ethically by taking responsibility for the impact of its actions on its shareholders, consumers, employees, community, environment, and suppliers.
Supply chain sustainability	A component of CSR that focuses on developing and maintaining a supply chain that meets the needs of the present without compromising the ability of future generations to meet their needs. Takes into account issues such as fair labor practices, energy and resource conservation, human rights, and community responsibility.

European Union Directives Affecting IT Manufacturers

Directive/Regulation	Purpose
Restriction of Hazardous Substances Directive	Restricts the use of certain hazardous substances in electrical and electronic equipment.
Waste Electrical and Electronic Equipment Directive	Sets targets for collection, recycling, and recovery of e-waste.

Directive/Regulation	Purpose
Registration, Evaluation, Authorization, and Restriction of Chemicals (REACH) Regulation	Addresses the production and use of chemical substances and their potential impacts on human health and the environment.

Example: Dell's Closed-Loop Plastics Supply Chain

- In fiscal year 2015, Dell launched its **closed-loop plastics supply chain**.
- By year end, Dell recycled **2.2 million pounds** of those plastics back into new Dell products.
- Its global takeback program has made Dell the world's largest technology recycler, collecting more than **1.4 billion pounds of e-waste** since 2007.

Why Fostering CSR and Good Business Ethics is Important

Organizations have at least five good reasons to pursue CSR goals and promote ethical work environments:

1. **Gaining the goodwill of the community**
2. **Creating an organization that operates consistently**
3. **Fostering good business practices**
4. **Protecting the organization and its employees from legal action**
5. **Avoiding unfavorable publicity**

Characteristics of a Successful Ethics Program

According to the Ethics Resource Center:

- Employees feel prepared to handle situations that could lead to misconduct.
- Employees are willing to seek advice about ethics-related issues.
- Employees are rewarded for ethical behavior.
- The organization does not reward success obtained through questionable means.
- Employees feel positively about their company.

Actions to Improve Business Ethics

Organizations can take several actions to improve their business ethics:

1. Appointing a corporate ethics officer
2. Requiring its board of directors to set and model high ethical standards
3. Establishing a corporate code of ethics
4. Conducting social audits

5. Requiring employees to take ethics training
6. Including ethical criteria in employee appraisals
7. Creating an ethical work environment

Simple Decision-Making Model

Often, people employ a simple decision-making model that includes these steps:

1. Define the problem
2. Identify alternatives
3. Choose an alternative
4. Implement the decision
5. Monitor the results

You can incorporate ethical considerations into decision making by:

- Identifying and involving the stakeholders
- Weighing various laws, guidelines, and principles—including the organization's code of ethics—that may apply
- Considering the impact of the decision on yourself, your organization, stakeholders, customers, suppliers, and the environment

PART III: ETHICS IN INFORMATION TECHNOLOGY (Lesson 3)

Examples Raising Public Concern About Ethical Use of IT

Concern	Description
Government Surveillance	Governments have implemented various systems enabling citizen surveillance, struggling to balance privacy and security.
Employee Monitoring	Many employees have email and Internet access monitored while at work, as employers balance managing company assets with employees' desire for privacy.
Copyright Violations	Millions of people have downloaded music and movies at no charge, violating copyright laws at tremendous expense to copyright owners.
Unsolicited Marketing	Organizations contact millions worldwide through unsolicited email and text messages in an intrusive, low-cost marketing approach.
Hacking and Identity Theft	Hackers break into databases to steal customer information and commit identity theft.

Concern	Description
Plagiarism	Students have been caught downloading material from the web and plagiarizing content for term papers.
Cookies and Spyware	Websites plant cookies or spyware on visitors' hard drives to track online purchases and activities.

IT Worker Relationships That Must Be Managed

IT workers must manage relationships with:

1. **Employers**
 2. **Clients**
 3. **Suppliers**
 4. **Other Professionals**
 5. **IT Users**
 6. **Society**
-

Relationships Between IT Workers and Employers

Term	Definition
Trade secret	Information, generally unknown to the public, that a company has taken strong measures to keep confidential. It represents something of economic value that has required effort or cost to develop and that has some degree of uniqueness or novelty. Trade secrets can include the design of new software code, hardware designs, business plans, user interfaces, and manufacturing processes.
Whistle-blowing	An effort by an employee to attract attention to a negligent, illegal, unethical, abusive, or dangerous act by a company that threatens the public interest. Whistle-blowers often have special information based on their expertise or position within the offending organization.

Relationships Between IT Workers and Clients

Term	Definition
Conflict of interest	A conflict between the IT worker's (or the IT firm's) self-interest and the client's interests.
Fraud	The crime of obtaining goods, services, or property through deception or trickery.

Elements required to prove fraud in court:

1. The wrongdoer made a false representation of material fact.
2. The wrongdoer intended to deceive the innocent party.
3. The innocent party justifiably relied on the misrepresentation.
4. The innocent party was injured.

Term	Definition
Misrepresentation	The misstatement or incomplete statement of a material fact. If the misrepresentation causes the other party to enter into a contract, that party may have the legal right to cancel the contract or seek reimbursement for damages.
Breach of contract	Occurs when one party fails to meet the terms of a contract.
Material breach of contract	Occurs when a party fails to perform certain express or implied obligations, which impairs or destroys the essence of the contract.

Relationships Between IT Workers and Suppliers

Term	Definition
Bribery	The act of providing money, property, or favors to someone in business or government in order to obtain a business advantage. The person who offers a bribe commits a crime when the offer is made, and the recipient is guilty of a crime if he or she accepts the bribe.
Kickback or Payoff	A type of bribe where a supplier's representative offers money to another company's employee to get its business.

Term	Definition
Internal control	A fundamental concept of good internal controls, including separation of duties.
Policies	The guidelines and standards by which the organization must abide.
Processes	A collection of tasks designed to accomplish a stated objective.
Procedure	Defines the exact instructions for completing each task in a process.

Relationships Between IT Workers and Other Professionals

Term	Definition
Résumé inflation	Involves lying on a résumé by, for example, claiming competence in an IT skill that is in high demand.

Relationships Between IT Workers and IT Users

Term	Definition
IT user	Refers to a person who uses a hardware or software product. The term distinguishes end users from the IT workers who develop, install, service, and support the product. IT users need the product to deliver organizational benefits or to increase their productivity.

Relationships Between IT Workers and Society

The actions of an IT worker can affect society. For example, a systems analyst may design a computer-based control system to monitor a chemical manufacturing process. A failure or an error in the system may put workers or people who live near the plant at risk. As a result, IT workers have a relationship with members of society who may be affected by their actions.

Characteristics of a Professional

A professional:

1. Is an expert in the tools and skills needed to do their job.
2. Adheres to high ethical and moral standards.
3. Produces high quality results.

4. Meets their commitments.
5. Communicates effectively.
6. Trains and develops others who are less skilled or experienced.

How IT Workers Can Improve Professionalism

IT workers can improve their profession's reputation for professionalism by:

1. Subscribing to a professional code of ethics
2. Joining and participating in professional organizations
3. Obtaining appropriate certifications
4. Supporting government licensing where available

Professional Codes of Ethics

Term	Definition
Professional Codes of Ethics	States the principles and core values that are essential to the work of a particular occupational group. The first outlines what the organization aspires to become, and the second typically lists rules and principles by which members of the organization are expected to abide.

Benefits of following a professional code of ethics:

- Ethical decision making
- High standards of practice and ethical behavior
- Trust and respect from the general public
- Evaluation benchmark

Professional Organizations

Organization	Description
Association for Computing Machinery (ACM)	A computing society founded in New York in 1947, dedicated to advancing the art, science, engineering, and application of information technology. It is the world's largest educational and scientific society, international in scope.
Institute of Electrical and Electronics Engineers Computer Society (IEEE-CS)	One of the oldest and largest IT professional associations, with about 60,000 members. Founded in 1946, it is the largest of the 38 societies of the IEEE.

Organization	Description
Association of Information Technology Professionals (AITP)	Started in Chicago in 1951 as the Machine Accountants Association (MAA), evolved into DPMA in 1962, and finally AITP in 1996. Mission: to provide superior leadership and education in IT.
SysAdmin, Audit, Network, Security (SANS) Institute	Provides information security training and certification for a wide range of individuals, such as auditors, network administrators, and security managers.

Certification

Term	Definition
Certification	Indicates that a professional possesses a particular set of skills, knowledge, or abilities, in the opinion of the certifying organization.
Vendor Certifications	Offered by IT vendors such as Cisco, IBM, Microsoft, SAP, and Oracle for those who use their products.

Licensing of IT Professionals

Term	Definition
Government license	Government-issued permission to engage in an activity or to operate a business.
Core body of knowledge	Outlines agreed-upon sets of skills and abilities that all licensed professionals must possess.
Software engineer	One who applies engineering principles and practices to the design, development, implementation, testing, and maintenance of software.

The "**Software Engineering Code of Ethics and Professional Practice**" documents the ethical and professional responsibilities and obligations of software engineers.

IT Professional Malpractice

Term	Definition
Negligence	Not doing something that a reasonable person would do, or doing something that a reasonable person would not do.
Duty of care	The obligation to protect people against any unreasonable harm or risk.
Reasonable person standard	A standard used to judge negligence.
Reasonable professional standard	A standard used to judge professional negligence.
Breach of the duty of care	Failure to act as a reasonable person would act.
Professional malpractice	Professional negligence.

Common Ethical Issues for IT Users

1. **Software Piracy**
2. **Inappropriate Use of Computing Resources**
3. **Inappropriate Sharing of Information**

Supporting Ethical Practices of IT Users

1. **Establishing Guidelines for Use of Company Hardware and Software**
2. **Defining an Acceptable Use Policy**
3. **Structuring Information Systems to Protect Data and Information**
4. **Installing and Maintaining a Corporate Firewall**
5. **Compliance**

PART IV: CYBERATTACKS AND CYBERSECURITY (Lesson 4)

Key Ethical Questions in IT Security

Business managers, IT professionals, and IT users face ethical decisions regarding IT security:

- If a firm is a victim of a computer crime, should it pursue prosecution at all costs, maintain a low profile to avoid negative publicity, inform affected customers, or take other action?
- How much effort and money should be spent to safeguard against computer crime?
- If a company realizes it has produced software with defects that enable hackers to attack customer data, what actions should it take?
- What should be done if recommended security safeguards make conducting business more difficult, resulting in lost sales and increased costs?

Most Common Computer-Related Security Incidents (2008-2010)

Type of Incident	2008	2009	2010
Malware infection	50%	64%	67%
Being fraudulently represented as sender of phishing emails	31%	34%	39%
Laptop or mobile hardware loss	42%	42%	34%
Employee abuse of Internet access or email	44%	30%	25%

Country Rankings - Infected Computers

Highest Rate		Lowest Rate	
Sudan	70%	Japan	6%
Bangladesh	64%	Germany	9%
Iraq	62%	Switzerland	10%
Rwanda	57%	Luxembourg	10%
Nepal	56%	Denmark	11%

Key Technology Concepts

Term	Definition
Cloud computing	Software and data storage are services provided via the Internet ("the cloud"); the services are run on another organization's computer hardware and are accessed via a Web browser.
Virtualization software	Operates in a software layer that runs on top of the operating system. It enables multiple virtual machines—each with their own operating system—to run on a single computer.
Virtual machines	Performs as if it is a separate computer, completing required tasks for the users and applications assigned to that virtual machine.
Bring Your Own Device (BYOD)	A business policy that permits, and in some cases encourages, employees to use their own mobile devices (smartphones, tablets, or laptops) to access company computing resources and applications, including email, corporate databases, the corporate intranet, and the Internet.

Types of Exploits - Malware

Zero-Day Exploit

- A cyberattack that takes place **before** the security community and/or software developers become aware of and fix a security vulnerability.
- Takes advantage of security flaws that enable unauthorized users to gain access to a computer system or to download sensitive user data.

Ransomware

- Malware that stops you from using your computer or accessing your data until you meet certain demands, such as paying a ransom or sending photos to the attacker.

Viruses

- Computer virus has become an umbrella term for many types of malicious code.
- A piece of programming code, usually disguised as something else, that causes a computer to behave in an unexpected and usually undesirable manner.
- Viruses are spread by the action of the "infected" computer user.

Macro Viruses

- Common and easily created form of virus.
- Attackers use an application macro language (such as Visual Basic or VBScript) to create programs that infect documents and templates.

- Macros can insert unwanted words, numbers, or phrases into documents or alter command functions.
- **Example:** The "WM97/Resume.A" virus is a Word macro virus spread via an email message with the subject line "Resume - Janet Simons."

Worms

- A harmful program that resides in the active memory of the computer and **duplicates itself**.

Trojan Horse

- A seemingly harmless program in which malicious code is hidden.
- A Trojan horse often creates a "**backdoor**" on a computer that enables an attacker to gain future access to the system and compromise confidential or private information.
- Can be delivered via email attachment, website download, or removable media device (DVD, USB memory stick).
- Common host programs include screen savers, greeting card systems, and games.

Logic Bomb

- Another type of Trojan horse that executes when it is triggered by a **specific event**.
- Examples: triggered by a change in a particular file, by typing a specific series of keystrokes, or at a specific time or date.

Blended Threat

- A sophisticated threat that combines the features of a virus, worm, Trojan horse, and other malicious code into a single payload.
- Might use server and Internet vulnerabilities to initiate, transmit, and spread an attack using multiple modes (email, IRC, file-sharing networks).
- Might attack multiple EXE files, HTML files, and registry keys simultaneously.

Spam and Anti-Spam Measures

Term	Definition
Email spam	The use of email systems to send unsolicited email to large numbers of people. Most spam is a form of low-cost commercial advertising, sometimes for questionable products such as pornography, phony get-rich-quick schemes, and worthless stock. It is also an extremely inexpensive marketing tool used by many legitimate organizations.
CAN-SPAM Act	Controlling the Assault of Non-Solicited Pornography and Marketing Act. States that it is legal to spam, provided messages meet a few basic requirements: (1)

Term	Definition
	spammers cannot disguise their identity by using a false return address; (2) the email must include a label specifying that it is an ad or solicitation; (3) the email must include a way for recipients to indicate they do not want future mass mailings.
CAPTCHA	Completely Automated Public Turing Test to Tell Computers and Humans Apart. A software that generates and grades tests that humans can pass and all but the most sophisticated computer programs cannot. For example, humans can read distorted text, but simple computer programs cannot.

Network Attacks

DDoS Attacks (Distributed Denial-of-Service)

- One in which a malicious hacker takes over computers via the Internet and causes them to flood a target site with demands for data and other small tasks.
- It keeps the target so busy responding to a stream of automated requests that legitimate users cannot get in.

Botnet

- Used to describe a large group of computers (called **zombies**) which are controlled from one or more remote locations by hackers, without the knowledge or consent of their owners.

Dyn

- An Internet performance management company that provides network services including Domain Name System (DNS) services for its many clients.

DNS (Domain Name System)

- A large distributed database that translates the domain name you enter into your browser.

Advanced Malware

Rootkit

- A set of programs that enables its user to gain **administrator-level access** to a computer without the end user's consent or knowledge.
- The "2012 rootkit virus" is a nasty piece of malware that deletes information from a computer and makes it impossible to run some applications, such as Microsoft Word.

Advanced Persistent Threat (APT)

- A network attack in which an intruder gains access to a network and stays there—**undetected**—with the intention of stealing data over a long period of time (weeks or even months).

Social Engineering Attacks

Type	Definition
Phishing	The act of fraudulently using email to try to get the recipient to reveal personal data.
Spear phishing	A variation of phishing in which the phisher sends fraudulent emails to a certain organization's employees.
Smishing	Involves the use of texting—people receive a legitimate-looking text message telling them to call a specific phone number or log on to a website.
Vishing	Victims receive a voice-mail message telling them to call a phone number or access a website.

Actions to Take Against Phone Scams

1. Companies should educate their customers.
2. Call center service employees should be trained to detect customer complaints that indicate a scam is being perpetrated.
3. Customers should be notified immediately if a scam occurs.
4. If it is determined that the calls are originating from within the United States, companies should report the scam to the FBI.
5. Institutions can also try to notify the telecommunications carrier.

Cyber Threats and Perpetrators

Term	Definition
Cybersecurity	Involves the deployment of malware that secretly steals data in the computer systems of organizations, such as government agencies, military contractors, political organizations, and manufacturing firms.

Term	Definition
Cyberterrorism	The intimidation of government or civilian population by using information technology to disable critical national infrastructure (energy, transportation, financial, law enforcement, emergency response) to achieve political, religious, or ideological goals.
Cyberterrorists	Try on a daily basis to gain unauthorized access to important and sensitive sites, such as foreign intelligence agencies, NORAD, and numerous government ministries and private companies worldwide.

Types of Perpetrators

Type of Perpetrator	Typical Motives
Hacker	Test limits of system and/or gain publicity
Cracker	Cause problems, steal data, and corrupt systems
Malicious insider	Gain financially and/or disrupt company's information systems and business operations
Industrial spy	Capture trade secrets and gain competitive advantage
Cybercriminal	Gain financially
Hactivist	Promote political ideology
Cyberterrorist	Destroy infrastructure components of financial institutions, utilities, and emergency response units

Detailed Perpetrator Definitions

Term	Definition
Hacker	Test the limitations of information systems out of intellectual curiosity.

Term	Definition
Lamers or script kiddies	Technically inept hackers.
Cracker	Break into other people's networks and systems to cause harm—defacing Web pages, crashing computers, spreading harmful programs or hateful messages, and writing scripts and automated programs that let other people do the same things. Cracking is a form of hacking that is clearly criminal activity.
Malicious insiders	A major security concern for companies. Insiders are not necessarily employees; they can also be consultants and contractors.
Industrial spies	Use illegal means to obtain trade secrets from competitors of their sponsor.
Competitive intelligence	Uses legal techniques to gather information that is available to the public.
Cybercriminals	Motivated by the potential for monetary gain and hack into corporate computers to steal, often by transferring money from one account to another, leaving a hopelessly complicated trail for law enforcement.
Smart cards	Some card issuers are issuing debit and credit cards in the form of smart cards, which contain a memory chip that is updated with encrypted data every time the card is used.
Hactivism	A combination of hacking and activism; hacking to achieve a political or social goal.
Cyberterrorist	Launches computer-based attacks against other computers or networks in an attempt to intimidate or coerce a government in order to advance certain political or social objectives.

PART V: DATA PRIVACY ACT OF 2012 (Republic Act No. 10173)

Chapter I: General Provisions

SEC. 1. Short Title. - This Act shall be known as the "**Data Privacy Act of 2012**".

SEC. 2. Declaration of Policy. - It is the policy of the State to protect the fundamental human right of privacy, of communication while ensuring free flow of information to promote innovation and growth. The State recognizes the vital role of information and communications technology in nation-building and its inherent obligation to ensure that personal information in information and communications systems in the government and in the private sector are secured and protected.

SEC. 3. Definition of Terms

Term	Definition
Commission	Shall refer to the National Privacy Commission created by virtue of this Act.
Consent of the data subject	Refers to any freely given, specific, informed indication of will, whereby the data subject agrees to the collection and processing of personal information about and/or relating to him or her. Consent shall be evidenced by written, electronic or recorded means. It may also be given on behalf of the data subject by an agent specifically authorized by the data subject to do so.
Data subject	Refers to an individual whose personal information is processed.
Direct marketing	Refers to communication by whatever means of any advertising or marketing material which is directed to particular individuals.
Filing system	Refers to any act of information relating to natural or juridical persons to the extent that, although the information is not processed by equipment operating automatically in response to instructions given for that purpose, the set is structured, either by reference to individuals or by reference to criteria relating to individuals, in such a way that specific information relating to a particular person is readily accessible.
Information and Communications System	Refers to a system for generating, sending, receiving, storing or otherwise processing electronic data messages or electronic documents and includes the computer system or other similar device by or which data is recorded, transmitted or stored and any

Term	Definition
	procedure related to the recording, transmission or storage of electronic data, electronic message, or electronic document.
Personal information	Refers to any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual.
Personal information controller	Refers to a person or organization who controls the collection, holding, processing or use of personal information, including a person or organization who instructs another person or organization to collect, hold, process, use, transfer or disclose personal information on his or her behalf. The term excludes: (1) A person or organization who performs such functions as instructed by another person or organization; and (2) An individual who collects, holds, processes or uses personal information in connection with the individual's personal, family or household affairs.
Personal information processor	Refers to any natural or juridical person qualified to act as such under this Act to whom a personal information controller may outsource the processing of personal data pertaining to a data subject.
Processing	Refers to any operation or any set of operations performed upon personal information including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data.
Privileged information	Refers to any and all forms of data which under the Rules of Court and other pertinent laws constitute privileged communication.

Sensitive Personal Information

Refers to personal information:

1. About an individual's **race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations;**
2. About an individual's **health, education, genetic or sexual life of a person**, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
3. Issued by government agencies peculiar to an individual which includes, but not limited to, **social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns;** and
4. Specifically established by an executive order or an act of Congress to be kept classified.

SEC. 4. Scope

This Act applies to the processing of all types of personal information and to any natural and juridical person involved in personal information processing including those personal information controllers and processors who, although not found or established in the Philippines, use equipment that are located in the Philippines, or those who maintain an office, branch or agency in the Philippines.

This Act does NOT apply to the following:

(a) Information about any individual who is or was an officer or employee of a government institution that relates to the position or functions of the individual, including:

- The fact that the individual is or was an officer or employee of the government institution
- The title, business address and office telephone number of the individual
- The classification, salary range and responsibilities of the position held
- The name of the individual on a document prepared in the course of employment

(b) Information about an individual who is or was performing service under contract for a government institution that relates to the services performed, including the terms of the contract, and the name of the individual given in the course of the performance of those services

(c) Information relating to any discretionary benefit of a financial nature such as the granting of a license or permit given by the government to an individual

(d) Personal information processed for **journalistic, artistic, literary or research purposes**

(e) Information necessary to carry out the functions of public authority including processing for the performance by the independent, central monetary authority and law enforcement and regulatory agencies of their constitutionally and statutorily mandated functions

- (f) Information necessary for banks and other financial institutions under the jurisdiction of the Bangko Sentral ng Pilipinas to comply with applicable laws
- (g) Personal information originally collected from residents of foreign jurisdictions in accordance with the laws of those foreign jurisdictions
-

SEC. 5. Protection Afforded to Journalists and Their Sources

Nothing in this Act shall be construed as to have amended or repealed the provisions of Republic Act No. 53, which affords the publishers, editors or duly accredited reporters of any newspaper, magazine or periodical of general circulation protection from being compelled to reveal the source of any news report or information appearing in said publication which was related in any confidence to such publisher, editor, or reporter.

SEC. 6. Extraterritorial Application

This Act applies to an act done or practice engaged in and outside of the Philippines by an entity if:

- (a) The act, practice or processing relates to personal information about a **Philippine citizen or a resident**;
- (b) The entity has a **link with the Philippines**, and the entity is processing personal information in the Philippines or even if the processing is outside the Philippines as long as it is about Philippine citizens or residents such as, but not limited to, the following:
- A contract is entered in the Philippines
 - A juridical entity unincorporated in the Philippines but has central management and control in the country
 - An entity that has a branch, agency, office or subsidiary in the Philippines and the parent or affiliate of the Philippine entity has access to personal information
- (c) The entity has other links in the Philippines such as, but not limited to:
- The entity carries on business in the Philippines
 - The personal information was collected or held by an entity in the Philippines
-

Chapter II: The National Privacy Commission

SEC. 7. Functions of the National Privacy Commission

The National Privacy Commission (NPC) is an independent body created to administer and implement the provisions of this Act. Its functions include:

- (a) Ensure compliance of personal information controllers with the provisions of this Act
- (b) Receive complaints, institute investigations, facilitate settlement of complaints through alternative dispute resolution, adjudicate, award indemnity on matters affecting any personal information

- (c) Issue cease and desist orders, impose a temporary or permanent ban on the processing of personal information, upon finding that the processing will be detrimental to national security and public interest
- (d) Compel or petition any entity, government agency or instrumentality to abide by its orders
- (e) Monitor the compliance of other government agencies on their security and technical measures
- (f) Coordinate with other government agencies and the private sector on efforts to formulate and implement plans and policies to strengthen data protection
- (g) Publish on a regular basis a guide to all laws relating to data protection
- (h) Publish a compilation of agency system of records and notices
- (i) Recommend to the Department of Justice (DOJ) the prosecution and imposition of penalties
- (j) Review, approve, reject or require modification of privacy codes voluntarily adhered to by personal information controllers
- (k) Provide assistance on matters relating to privacy or data protection at the request of any entity or person
- (l) Comment on the implication on data privacy of proposed national or local statutes, regulations or procedures, issue advisory opinions and interpret the provisions of this Act
- (m) Propose legislation, amendments or modifications to Philippine laws on privacy or data protection as may be necessary
- (n) Ensure proper and effective coordination with data privacy regulators in other countries
- (o) Negotiate and contract with other data privacy authorities of other countries for cross-border application and implementation of respective privacy laws
- (p) Assist Philippine companies doing business abroad to respond to foreign privacy or data protection laws and regulations
- (q) Generally perform such acts as may be necessary to facilitate cross-border enforcement of data privacy protection

SEC. 8. Confidentiality. - The Commission shall ensure at all times the confidentiality of any personal information that comes to its knowledge and possession.

SEC. 9. Organizational Structure of the Commission

- The Commission shall be attached to the **Department of Information and Communications Technology (DICT)** .
- Headed by a **Privacy Commissioner**, who shall also act as Chairman.
- Assisted by **two (2) Deputy Privacy Commissioners**: one responsible for Data Processing Systems, one responsible for Policies and Planning.

- Appointed by the President for a term of **three (3) years**, may be reappointed for another term of three (3) years.
 - Privacy Commissioner must be at least 35 years old, of good moral character, unquestionable integrity, and a recognized expert in information technology and data privacy. Shall enjoy benefits equivalent to the rank of **Secretary**.
 - Deputy Privacy Commissioners must be recognized experts in ICT and data privacy. Shall enjoy benefits equivalent to the rank of **Undersecretary**.
-

SEC. 10. The Secretariat

The Commission is authorized to establish a Secretariat. Majority of its members must have served for at least five (5) years in any government agency involved in processing personal information including, but not limited to: SSS, GSIS, LTO, BIR, PhilHealth, COMELEC, DFA, DOJ, and Philpost.

Chapter III: Processing of Personal Information

SEC. 11. General Data Privacy Principles

The processing of personal information shall be allowed, subject to compliance with the requirements of this Act and adherence to the principles of **transparency, legitimate purpose, and proportionality**.

Personal information must be:

- (a) Collected for **specified and legitimate purposes** determined and declared before or as soon as reasonably practicable after collection, and later processed in a way compatible with such purposes
- (b) Processed **fairly and lawfully**
- (c) **Accurate, relevant** and, where necessary, kept up to date; inaccurate or incomplete data must be rectified, supplemented, destroyed or their further processing restricted
- (d) **Adequate and not excessive** in relation to the purposes for which they are collected and processed
- (e) **Retained only for as long as necessary** for the fulfillment of the purposes for which the data was obtained or for the establishment, exercise or defense of legal claims, or for legitimate business purposes, or as provided by law
- (f) Kept in a form which permits identification of data subjects for **no longer than is necessary** for the purposes for which the data were collected and processed

The personal information controller must ensure implementation of these principles.

SEC. 12. Criteria for Lawful Processing of Personal Information

The processing of personal information shall be permitted only if not otherwise prohibited by law, and when at least one of the following conditions exists:

- (a) The data subject has given his or her **consent**
 - (b) The processing is necessary and is related to the **fulfillment of a contract** with the data subject
 - (c) The processing is necessary for **compliance with a legal obligation** to which the personal information controller is subject
 - (d) The processing is necessary to protect **vitality important interests** of the data subject, including life and health
 - (e) The processing is necessary in order to respond to **national emergency**, to comply with the requirements of **public order and safety**, or to fulfill **functions of public authority**
 - (f) The processing is necessary for the purposes of the **legitimate interests** pursued by the personal information controller or by a third party, except where such interests are overridden by fundamental rights and freedoms of the data subject
-

SEC. 13. Sensitive Personal Information and Privileged Information

The processing of sensitive personal information and privileged information shall be **prohibited**, except in the following cases:

- (a) The data subject has given his or her **consent**, specific to the purpose prior to the processing (for privileged information, all parties to the exchange have given their consent)
 - (b) The processing is provided for by **existing laws and regulations** that guarantee the protection of such information
 - (c) The processing is necessary to protect the **life and health** of the data subject or another person, and the data subject is not legally or physically able to express consent
 - (d) The processing is necessary to achieve the lawful and noncommercial objectives of **public organizations and their associations**, confined to bona fide members, with consent obtained
 - (e) The processing is necessary for purposes of **medical treatment**, carried out by a medical practitioner or institution, with adequate protection ensured
 - (f) The processing is necessary for the **protection of lawful rights and interests** in court proceedings or the establishment, exercise or defense of legal claims
 - (g) The processing is necessary for the purposes of **medical treatment, management of health-care services, or medical research**, carried out by a medical practitioner or institution with adequate protection
-

Chapter IV: Rights of the Data Subject

SEC. 16. Rights of the Data Subject

1. RIGHT TO BE INFORMED

As a data subject, you have the right to be informed whether your personal data shall be, are being, or have been processed, including the existence of automated decision-making and profiling.

You shall be notified and furnished with the following information before your personal data is processed:

- Description of the personal data to be entered into the system
- Purposes for which they are being or will be processed
- Basis of processing, when processing is not based on consent
- Scope and method of the personal data processing
- The recipients or classes of recipients to whom the personal data are or may be disclosed
- Methods utilized for automated access, if allowed, and the extent to which such access is authorized
- The identity and contact details of the personal information controller and its representative
- The period for which the information will be stored or retained
- The existence of their rights as data subjects

2. RIGHT TO ACCESS

As a data subject, you have the right to obtain confirmation on whether or not data relating to you are being processed, as well as information about:

- Contents of personal information and categories of data that were processed
- Sources from which personal data were obtained, if not collected from the data subject
- Purposes of processing
- Manner by which such data were processed
- Information on automated processes where processed data will be the sole basis for any significant decision
- Names and addresses of recipients of the personal information
- Reasons for the disclosure of personal information to recipients
- Date when personal data were last accessed and modified
- Period for which particular categories of information will be stored
- The designation, name or identity, and address of the PIC's data protection officer

Limitations on Access:

- You may request access to your own personal data, but not to information relating to any other individual.
- This excludes analysis made by the PIC (inferred, derived, modeled, or business-generated data).

Instances when right to access may be limited:

- If the information is publicly available
- Repeated, identical, or similar requests if access has been previously granted unless a reasonable interval has elapsed
- If the request will entail a disproportionate amount of effort or resources
- If providing access may cause serious harm to your physical, mental, or emotional health

3. RIGHT TO OBJECT

As a data subject, you have the right to object to the processing of your personal data where such processing is based on consent or legitimate interest.

When can you object?

- If there is any significant change or amendment to the information provided in a consent form, privacy notice, or similar communication, you should be notified and given an opportunity to object and/or withdraw consent
- You can also object to processing for:
 - Direct marketing
 - Profiling
 - Cases of automated processing where your personal data will be the sole basis for any significant decision

4. RIGHT TO RECTIFY

As a data subject, you have the right to dispute the inaccuracy or error in your personal data and have the PIC correct the same within a reasonable period of time.

Note: This right excludes instances where rectification or correction requires an order from a competent court, other pertinent government agencies, or is covered by an official process under other applicable laws.

5. RIGHT TO ERASURE OR BLOCKING

As a data subject, you have the right to request for the suspension, withdrawal, blocking, removal, or destruction of your personal data from the PIC's filing system, in both live and backup systems.

When to exercise this right (with substantial proof):

- The personal data is:
 - Incomplete, outdated, false, or unlawfully obtained
 - Used for an unauthorized purpose
 - No longer necessary for the purpose/s for which they were collected
 - Concerns private information that is prejudicial to the data subject, unless justified by freedom of speech, expression, or press
- The data subject objects to processing and there are no other applicable lawful criteria
- The processing is unlawful

- The PIC or PIP violated the rights of the data subject

6. RIGHT TO DATA PORTABILITY

As a data subject, you have the right to obtain from the PIC a copy of your personal data and/or have the same transmitted from one PIC to another, in an electronic or structured format that is commonly used.

Conditions to exercise this right:

1. The processing is based on **consent or contract**
2. The personal data is processed by **electronic means** and in a **structured and commonly used format**

You may request for any format provided that it is **commonly used, machine-readable, interoperable, open formats** (e.g., XML, JSON, CSV).

7. RIGHT TO DAMAGES

As a data subject, you have the right to be indemnified for any damages sustained due to inaccurate, incomplete, outdated, false, unlawfully obtained, or unauthorized use of your personal data.

How to exercise this right:

When there is a perceived violation of your rights, you may file a complaint with the NPC, in accordance with its Rules of Procedure.

8. RIGHT TO FILE A COMPLAINT

If you feel that your personal information has been misused, maliciously disclosed, improperly disposed, or that any of your data privacy rights have been violated, you have the right to file a complaint with the NPC.

SEC. 17. Transmissibility of Rights of the Data Subject

The lawful heirs and assigns of the data subject may invoke the rights of the data subject for which he or she is an heir or assignee at any time after the death of the data subject or when the data subject is incapacitated or incapable of exercising the rights.

SEC. 18. Right to Data Portability (covered above)

SEC. 19. Non-Applicability

The preceding rights are **not applicable** if:

- The processed personal information are used only for the needs of **scientific and statistical research** and, on the basis of such, no activities are carried out and no decisions are taken regarding the data subject, provided that the personal information shall be held under strict confidentiality and used only for the declared purpose.

- The processing of personal information gathered for the purpose of **investigations** in relation to any criminal, administrative or tax liabilities of a data subject.

Chapter V: Security of Personal Information

SEC. 20. Security of Personal Information

(a) The personal information controller must implement **reasonable and appropriate organizational, physical and technical measures** intended for the protection of personal information against any accidental or unlawful destruction, alteration, disclosure, and against any other unlawful processing.

(b) The personal information controller shall implement measures to protect personal information against **natural dangers** (accidental loss or destruction) and **human dangers** (unlawful access, fraudulent misuse, unlawful destruction, alteration, and contamination).

(c) The determination of the appropriate level of security must take into account:

- The nature of the personal information to be protected
- The risks represented by the processing
- The size of the organization and complexity of its operations
- Current data privacy best practices
- The cost of security implementation

Measures must include:

1. Safeguards to protect computer networks against accidental, unlawful, or unauthorized usage or interference
2. A security policy with respect to processing of personal information
3. A process for identifying and accessing reasonably foreseeable vulnerabilities and for taking preventive, corrective, and mitigating action against security incidents
4. Regular monitoring for security breaches and a process for taking action against security incidents

(d) The personal information controller must ensure that **third parties** processing personal information on its behalf implement these security measures.

(e) **Employees, agents, or representatives** involved in processing shall operate and hold personal information under strict confidentiality if not intended for public disclosure. This obligation continues even after leaving service or termination of employment.

(f) The personal information controller shall **promptly notify the Commission and affected data subjects** when sensitive personal information or other information that may enable identity fraud are reasonably believed to have been acquired by an unauthorized person.

Notification considerations:

- The Commission may take into account compliance and good faith in acquisition
- The Commission may exempt from notification if it would not be in public interest or interests of affected data subjects
- The Commission may authorize postponement of notification if it may hinder a criminal investigation

Chapter VI: Accountability for Transfer of Personal Information

SEC. 21. Principle of Accountability

- Each personal information controller is **responsible** for personal information under its control or custody, including information transferred to a third party for processing, whether domestically or internationally.
- The personal information controller is accountable for complying with the requirements of this Act and shall use **contractual or other reasonable means** to provide a comparable level of protection while the information are being processed by a third party.
- The personal information controller shall **designate an individual or individuals** who are accountable for the organization's compliance. The identity shall be made known to any data subject upon request.

Chapter VII: Security of Sensitive Personal Information in Government

SEC. 22. Responsibility of Heads of Agencies

All sensitive personal information maintained by the government shall be secured with the use of the most appropriate standard recognized by the ICT industry. The head of each government agency shall be responsible for complying with security requirements.

SEC. 23. Requirements Relating to Access by Agency Personnel

(a) On-site and Online Access - No employee shall have access unless they have received a **security clearance** from the head of the source agency.

(b) Off-site Access - Sensitive personal information may not be transported or accessed off government property unless a request is submitted and approved by the head of the agency with these guidelines:

1. Approval/disapproval within two (2) business days; no action = disapproved
2. Limit of **not more than 1,000 records** at a time
3. **Encryption** - must use the most secure encryption standard recognized by the Commission

SEC. 24. Applicability to Government Contractors

Any contract that may involve accessing sensitive personal information from **1,000 or more individuals** shall require the contractor to register their personal information processing system with the Commission and comply with this Act.

Chapter VIII: Penalties

Section	Offense	Imprisonment	Fine
25(a)	Unauthorized processing of personal information	1 to 3 years	₱500,000 - ₱2,000,000
25(b)	Unauthorized processing of sensitive personal information	3 to 6 years	₱500,000 - ₱4,000,000
26(a)	Accessing personal information due to negligence	1 to 3 years	₱500,000 - ₱2,000,000
26(b)	Accessing sensitive personal information due to negligence	3 to 6 years	₱500,000 - ₱4,000,000
27(a)	Improper disposal of personal information	6 months to 2 years	₱100,000 - ₱500,000
27(b)	Improper disposal of sensitive personal information	1 to 3 years	₱100,000 - ₱1,000,000
28	Processing of personal information for unauthorized purposes	1.5 to 5 years	₱500,000 - ₱1,000,000
28	Processing of sensitive personal information for unauthorized purposes	2 to 7 years	₱500,000 - ₱2,000,000
29	Unauthorized access or intentional breach	1 to 3 years	₱500,000 - ₱2,000,000
30	Concealment of security breaches involving sensitive personal information	1.5 to 5 years	₱500,000 - ₱1,000,000

Section	Offense	Imprisonment	Fine
31	Malicious disclosure (false information with malice/bad faith)	1.5 to 5 years	₱500,000 - ₱1,000,000
32(a)	Unauthorized disclosure of personal information to third party	1 to 3 years	₱500,000 - ₱1,000,000
32(b)	Unauthorized disclosure of sensitive personal information to third party	3 to 5 years	₱500,000 - ₱2,000,000
33	Combination or series of acts	3 to 6 years	₱1,000,000 - ₱5,000,000

SEC. 34. Extent of Liability

- If the offender is a **corporation, partnership, or juridical person**, the penalty shall be imposed upon the responsible officers who participated in, or by gross negligence allowed the commission of the crime.
- If the offender is a **juridical person**, the court may suspend or revoke any of its rights under this Act.
- If the offender is an **alien**, he or she shall be deported after serving the penalties.
- If the offender is a **public official or employee** found guilty of acts penalized under Sections 27 and 28, they shall also suffer **absolute perpetual disqualification** to hold public office.

SEC. 35. Large-Scale. - The maximum penalty shall be imposed when the personal information of at least **one hundred (100) persons** is harmed, affected, or involved.

SEC. 36. Offense Committed by Public Officer. - Disqualification to occupy public office for a term **double the term of criminal penalty** imposed.

SEC. 37. Restitution. - Governed by the provisions of the New Civil Code.

Chapter IX: Miscellaneous Provisions

SEC. 38. Interpretation. - Any doubt shall be liberally interpreted in a manner mindful of the rights and interests of the individual about whom personal information is processed.

SEC. 39. Implementing Rules and Regulations (IRR). - Within **ninety (90) days** from effectivity, the Commission shall promulgate IRR.

SEC. 40. Reports and Information. - The Commission shall annually report to the President and Congress.

SEC. 41. Appropriations Clause. - Initial appropriation of **Twenty million pesos (P20,000,000.00)** . Receives **Ten million pesos (P10,000,000.00)** per year for five (5) years upon implementation.

SEC. 42. Transitory Provision. - Existing industries, businesses, and offices shall be given **one (1) year transitory period** from effectivity of IRR to comply.

SEC. 43. Separability Clause. - If any provision is held invalid, the remainder shall remain valid.

SEC. 44. Repealing Clause. - Section 7 of Republic Act No. 9372 (Human Security Act of 2007) is hereby amended.

SEC. 45. Effectivity Clause. - This Act shall take effect **fifteen (15) days** after its publication in at least two (2) national newspapers of general circulation.

Approved: AUG 15 2012 by President Benigno S. Aquino III

PART VI: DATA PRIVACY (Overview)

What is Data Privacy?

Data privacy, also called information privacy, is an aspect of **data protection** that addresses the proper storage, access, retention, immutability, and security of sensitive data.

Data privacy is typically associated with the proper handling of **personal data** or **personally identifiable information (PII)** , such as:

- Names
- Addresses
- Social Security numbers
- Credit card numbers

The concept also extends to other valuable or confidential data, including:

- Financial data
- Intellectual property
- Personal health information

Vertical industry guidelines and regulatory requirements of various governing bodies often govern data privacy and data protection initiatives.

Republic Act 10173 - Data Privacy Act of 2012

The Data Privacy Act of 2012 is a **comprehensive data protection law** enacted in the Philippines. Its full title is:

"An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for this Purpose a National Privacy Commission, and for Other Purposes."

The law aims to protect the **fundamental human right to privacy**, particularly in the handling of personal information by both government and private entities. It establishes principles for the lawful processing of personal data, defines the rights of data subjects, outlines obligations for data controllers and processors, and provides mechanisms for enforcement and penalties for violations.

The **National Privacy Commission (NPC)** is the regulatory body responsible for implementing and enforcing the provisions of the Data Privacy Act.

Source: <https://privacy.gov.ph/data-privacy-act/>

Summary of Data Subject Rights

Right	Description
Right to be Informed	To be informed whether personal data are being processed, including purpose, basis, recipients, and storage period.
Right to Access	To obtain confirmation and details about processed personal data, sources, recipients, and processing methods.
Right to Object	To object to processing based on consent or legitimate interest, particularly for direct marketing, profiling, or automated decisions.
Right to Rectify	To dispute and correct inaccurate or erroneous personal data.
Right to Erasure or Blocking	To request suspension, withdrawal, blocking, removal, or destruction of personal data under certain conditions.
Right to Data Portability	To obtain a copy of personal data in a commonly used electronic format and/or have it transmitted to another PIC.
Right to Damages	To be indemnified for damages sustained due to violation of data privacy rights.
Right to File a Complaint	To file a complaint with the NPC if rights are violated.

PART VII: FREEDOM OF EXPRESSION (Lesson 6)

Definition

Freedom of expression refers to the ability of an individual or group of individuals to express their beliefs, thoughts, ideas, and emotions about different issues **free from government censorship**.

Article 10 of the Human Rights Act of 1998

Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers.

This Article shall not prevent States from requiring the licensing of broadcasting, television or cinema enterprises.

Restrictions on Freedom of Expression

The exercise of these freedoms carries with it duties and responsibilities. It may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are **necessary in a democratic society** for:

- The interests of **national security, territorial integrity, or public safety**
- The **prevention of disorder or crime**
- The **protection of health or morals**
- The **protection of the reputation or rights of others**
- **Preventing the disclosure of information received in confidence**
- **Maintaining the authority and impartiality of the judiciary**

Public authorities may restrict this right if they can show their action is **lawful, necessary, and proportionate** for these purposes.

Importance for Media

This right is particularly important for **journalists and other people working in the media**. They must be free to criticize the government and public institutions without fear of prosecution—this is a vital feature of a democratic society. However, this doesn't prevent the state from imposing restrictions on the media to protect other human rights, such as a person's **right to respect for their private life**.

Why Freedom of Expression is Important

Freedom of expression is a **core value in the democratic process**. It ensures people are able to **discuss, exchange, and debate ideas**. This human right allows individuals and communities to **find information which is important to them and share it with others**, without censorship or reprisals.

Internet Filtering and Censorship

Term	Definition
Internet filter	Software that can be used to block access to certain websites that contain material deemed inappropriate or offensive. The best Internet filters use a combination of URL, keyword, and dynamic content filtering.
Keyword filtering	Uses keywords or phrases—such as sex, Satan, and gambling—to block websites.
Dynamic content filtering	Each website's content is evaluated immediately before it is displayed, using techniques such as object analysis and image recognition.
Internet censorship	The control or suppression of the publishing or accessing of information on the Internet.

Example: In Cuba, only 5 percent of homes are connected. The government engages in censorship by frequently filtering and intermittently blocking websites critical of the state.

Anonymity on the Internet

Term	Definition
Anonymous expression	The expression of opinions by people who do not reveal their identity.
Doxing	Doing research on the Internet to obtain someone's private personal information—such as home address, email address, phone numbers, place of employment, and even private electronic documents—and then posting that information online without permission.
Anonymous remailer service	When email is sent, the email software automatically inserts a header identifying where the email originated. IP addresses are attached and captured as the message transfers. Anonymous remailers use a computer program to strip the originating header and/or IP number from the message and forward it to its intended recipient with either no IP address or a fake one, ensuring the header information cannot be used to identify the author.

Hate Speech

- **Persistent or malicious harassment** aimed at a specific person is hate speech, which can be prosecuted under the law.
 - **General, broad statements** expressing hatred of an ethnic, racial, or religious group cannot be prosecuted.
-

YouTube Guidelines

To post videos on YouTube, you must create a YouTube or Google account and agree to abide by the site's published guidelines, which **prohibit** posting videos showing:

- Pornography
 - Animal abuse
 - Graphic violence
 - Predatory behavior
 - Drug use
-

Pornography on the Internet

Term	Definition
Sexting	Sending sexual messages, nude or seminude photos, or sexually explicit videos over a cell phone. A Drexel University survey of college students revealed that 54 percent had sent or received "sexually explicit text messages or images" when they were under age 18.

Types of News Sources

- **Blogs** - some offer more objective, verifiable news reporting than others
- **Fake news sites**
- **Social media sites**